TENTATIVE RULINGS

DEPT CX102

Judge Layne H. Melzer

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the court's policy on the use of privately retained court reporters which can be found on the court's website at Court Reporter Services | Superior Court of California | County of Orange.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5302. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department CX102 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75, California Rule of Court (CRC) 3.672 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at Civil Remote Hearings | Superior Court of California | County of Orange prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available on the website. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") contained on the Court's website will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS
8/27/2026
02:00 PM

100	**Lopez vs. The Fishel Company** **2023-01305726**	**Final Accounting** The settlement administrator, ILYM Group, Inc., has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiff has shown that the administrator's work is complete, the Court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendant.
101	**Anaheim Chamber of Commerce vs. Anaheim/Orange County Visitor & Convention Bureau** **2025-01499697**	1. **Demurrer to Amended Complaint** 2. **Case Management Conference** Defendant Anaheim/Orange County Visitor & Convention Bureau ("AOCVCB," "Visit Anaheim," or "VA")'s demurrer to portions of Plaintiff Anaheim Chamber of Commerce ("Chamber" or "ACC")'s first amended complaint ("FAC") is **SUSTAINED WITHOUT LEAVE TO AMEND as to the 10th cause of action, and WITH LEAVE AS TO THE 3RD, 4TH AND 5TH and 11th causes of action and OVERRULED as to the 1st and 2nd causes of action.** (Code Civ. Proc. [CCP], § 430.10, subd. (e).) As an initial matter, the Court notes that although Defendant's notice of demurrer states that it is demurring to the 9th cause of action (ROA #74 at p. 1), neither Defendant's demurrer (*id.* at p. 3) nor the supporting memorandum of points and authorities (ROA #66) addresses the 9th cause of action. Therefore, the Court treats Defendant's reference to the 9th cause of action in the notice of demurrer as a typo. **Requests for Judicial Notice** Defendant's Request for Judicial Notice (ROA #, Exh. A) is **GRANTED**. (Evid. Code, § 452, subd. (d).) Plaintiff did not separately file a formal request for judicial notice, but instead attached various records from the *Ament* criminal case as Exhibit B to Plaintiff's opposition to the instant demurrer. (ROA #88 [Opp.], Exh. B.) Then, in footnote 1 on page 3 of Plaintiff's Opposition, Plaintiff states that "Plaintiff does not object to Defendant's request for judicial notice provided that this Court also consider Mr. Ahment's Motion to Withdraw Plea and Order regarding same, collectively annexed hereto as Exhibit 'B.'" (Opp. at p. 3, fn. 1.)

California Rules of Court (CRC) rule 3.1113(l) requires that "[a]ny request for judicial notice must be made in a separate document listing the specific items for which notice is requested . . . ." Plaintiff has failed to comply with this rule because Plaintiff did not file a separate request for judicial notice.

The Court **ADMONISHES** Plaintiff to comply with all applicable rules and procedures in the future. The Court **EXCUSES** the instant defect and **GRANTS** Plaintiff's request for judicial notice.

Merits

On a demurrer, a complaint "must be liberally construed, with a view to substantial justice between the parties." (CCP § 452; *see also Redfearn v. Trader Joe's Co.* (2018) 20 Cal.App.5th 989, 996.)

"A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal.App.5th 989, 996.) The court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Ibid*.) The court assumes "the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded[,] and matters of which judicial notice has been taken." (*Ibid*.)

"As a general rule in testing a pleading against a demurrer[,] the facts alleged in the pleading are deemed to be true, however improbable they may be," unless the "complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604; *Dodd v. Citizens Bank of Costa Mesa* (1990) 222 Cal.App.3d 1624, 1627 [giving "precedence" to exhibits attached to the complaint if it contradicts the language of the complaint].)

"Questions of fact . . . cannot be decided on demurrer." (*Berryman v. Merit Property Management, Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the legal sufficiency of the complaint, "[a] court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged in the complaint or are proper subjects of judicial notice." (*Hall v. Great West Bank* (1991) 231 Cal.App.3d 713, 718, fn. 7.)

Moreover, a demurrer must dispose of an *entire* cause of action to be sustained. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 [complaint will survive demurrer if factual allegations state a cause of action under any legal theory]; *PH II, Inc. v. Super. Ct.* (1995) 33 Cal.App.4th 1680, 1683 [only a motion to strike, not a demurrer, can attack a portion of a cause of action].)

"Where the complaint is defective, '[i]n the furtherance of justice great liberality should be exercised in permitting a plaintiff to amend [the] complaint.'" (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal.App.5th 989, 996, quoting *Aubry v. Tri-City Hospital Dist.*, *supra*, 2 Cal.4th at pp. 970-

971.) However, "leave to amend should *not* be granted where . . . amendment would be futile.'" (*Id.* at p. 997, italics original in *Redfearn*, quoting *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.) "A plaintiff against whom a demurrer is sustained is entitled to leave to amend the defective complaint if she can prove a reasonable possibility that the defect can be cured by amendment. The onus is on the plaintiff to articulate the specific ways to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend only if a potentially effective amendment is both apparent and consistent with the plaintiff's theory of the case." (*Schaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145, internal quotes, citations, & brackets omitted; see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 [leave to amend depends upon "whether there is a reasonable possibility that the defect can be cured by amendment," and "burden of proving such a reasonable possibility is squarely on the plaintiff"].)

Previous Demurrer to Complaint and Court's Ruling

As several of Defendant's arguments in the instant demurrer refer to or rely on the Court's 2/26/2026 ruling on Defendant's previous demurrer to the original complaint, the Court begins with a review of the parties' arguments and the Court's ruling on that previous demurrer.

The original complaint alleged only that Defendant breached the subject agreement because the agreement "provides for a Thirty (30) day notice to cure any breach," and "Defendant failed to provide the requisite cure period when it terminated the Funding Agreement." (ROA #2 [Compl.], ¶¶ 101-102.)

In its demurrer to the original complaint, Defendant contended that Plaintiff has misread the subject agreement's termination provision to require a 30-day notice to cure when Defendant exercised its option to terminate the agreement for cause, which is not subject to the referenced 30-day notice to cure. (See ROA #20 [1st Dem. P&A], p. 20.)

The Court agreed with Defendant in the Court's 2/26/2026 ruling:

> "Where a complaint is based on a written contract which it sets out in full, a general demurrer to the complaint admits not only the contents of the instrument but also any pleaded meaning to which the instrument is reasonably susceptible." (*Aragon-Haas v. Family Security Insurance Services, Inc.* (1991) 231 Cal.App.3d 232, 239.)
>
> The relevant term of the agreement provides as follows:
>
>> 5. In the event that either party fails or refuses to perform any of the provisions of this Funding Agreement at the time and in the manner required, that party shall be deemed in default in the performance of this Funding Agreement. If such default is not cured within a period of thirty (30) days after receipt of written notice of default, specifying the nature of such default and the steps

> necessary to cure such default, the non-defaulting party may terminate this Funding Agreement forthwith by giving to the defaulting party written notice thereof. The contract is terminable by the AOCVCB only on basis that the ACC is unable to carry out the annual work plan and/or due to financial insolvency or fraudulent or criminal conduct by the ACC management. The decision to terminate must be approved by a majority vote of the AOCVCB board and only after ACC [*sic*] gives 30 days notice for the Chamber to address the full ACC Board before their decision.

(ROA #7 [Supp. to Compl.], Exh. B at ¶ 5.)

"Whether a contract is ambiguous is a question of law." (*Aragon-Haas*, *supra*, 231 Cal.App.3d at p. 239.) Here, the final two sentences of the agreement's ¶ 5 clearly and unambiguously provides that the contract is terminable by Defendant on the basis of fraudulent or criminal conduct by Plaintiff's management, and that Defendant's decision to terminate is subject only to approval by a majority vote of its board and after Defendant gives 30 days' notice to Plaintiff to address Defendant's full board before Defendant's decision. To the extent the second sentence of ¶ 5 provides for a 30-day notice of default and the opportunity to cure, such notice and opportunity are required only in the event of a default, which the agreement defines as occurring when either party fails or refuses to perform any of the provisions of the agreement at the time and in the manner required—which is not the same thing as Defendant exercising its right to terminate the agreement for enumerated causes.

Based on a fair reading of the facts as alleged in the complaint, including the attachments thereto, along with facts that the Court has taken judicial notice of, it appears that Defendant terminated the agreement by exercising its option to do so under the last two sentences of ¶ 5 of the agreement, based upon the fraudulent or criminal conduct by Plaintiff's former executive, Todd Ament. (See Compl., ¶ 47.a. ["On or about August 22, 2023, Defendant issued a formal 'Notice of Intent to Terminate' the 2010 Funding Agreement, citing as purported cause the federal criminal plea of a former Chamber executive, Todd Ament. Notably, Mr. Ament had resigned from his role as Chamber CEO no later than December 2021—well before his indictment and guilty plea in mid-2022. No aspect of his conduct was tied to the Chamber's ongoing operations in 2022 or 2023, nor was it relevant to the Chamber's continued performance under the Funding Agreement"]; ROA #22 [Def.'s RJN], Exh. A [plea agreement entered by Ament in investigation of Ament's "schemes to commit wire fraud"]; Supp. to Compl., Exh. E [Defendant's 9/29/2023 notice to Plaintiff re "Termination of November 18, 2020 Funding Agreement, stating that "[o]n August 28, 2023, Visit Anaheim provided notice to the Anaheim Chamber of Commerce that Visit Anaheim's Board of Directors would vote on whether to terminate the November 18, 2010 Funding

> Agreement at its September 28, 2023 meeting. The Anaheim Chamber of Commerce was offered an opportunity to address Visit Anaheim's Board of Directors regarding the issue of termination at that meeting, and it did so. Thereafter, Visit Anaheim's Board voted to terminate the November 18, 2010 Funding Agreement, effective immediately."].)
>
> Under these facts, ¶ 5 of the agreement is not reasonably susceptible to Plaintiff's construction requiring Defendant to give Plaintiff a 30-day notice to cure before terminating the agreement for cause. Accordingly, to the extent that the complaint alleges only that Defendant breached the contract by failing to give Plaintiff a 30-day notice to cure before terminating the agreement, the complaint fails to allege facts sufficient to constitute a cause of action.

(ROA #54.)

In short, the Court's previous ruling focused on whether termination "due to . . . fraudulent or criminal conduct by the ACC management," referenced in the penultimate sentence of ¶ 5 of the agreement, is subject to the 30-day notice to cure provision in the second sentence of ¶ 5. The Court held that ¶ 5 is unambiguous as to whether the cure provision applies to termination "due to . . . fraudulent or criminal conduct by the ACC management"—it does not.

Instant Demurrer

1. 1st Cause of Action for Breach of Contract

The FAC continues to allege that the "cure" provision applies to termination "due to . . . fraudulent or criminal conduct by the ACC management." (ROA #61 [FAC], ¶ 100.)

However, the FAC also adds the following new allegations regarding the interpretation of ¶ 5 of the agreement. (See FAC, ¶¶ 101-103.) In short, the FAC now alleges that the phrase "criminal conduct by the ACC management" in the penultimate sentence of ¶ 5 is ambiguous because it is unclear whether such criminal conduct must be tied to obligations owed under the Funding Agreement and whether "the ACC management" applies only to then-current management or previous management that has already resigned. And since Defendant drafted the agreement, any such ambiguity must be construed against Defendant.

"When reviewing whether a plaintiff has properly stated a cause of action for breach of contract, we must determine whether the alleged agreement is 'reasonably susceptible' to the meaning ascribed to it in the complaint." (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1384.) "So long as the pleading does not place a clearly erroneous construction upon the provisions of the contract, in passing upon the sufficiency of the complaint, we must accept as correct plaintiff's allegations as to the meaning of the agreement." (*Id.* at p. 1385, internal quotes omitted, citing

		Aragon-Haas, *supra*, 231 Cal.App.3d at p. 239.) "Thus, to survive demurrer, plaintiff[ ] need only set forth a reasonable interpretation" of the subject agreement. (*Id.*) Here, Plaintiff has set forth a reasonable interpretation of "criminal conduct by the ACC management," which, when accepted as true, raises an ambiguity within that provision. In essence, Plaintiff contends that the phrase "criminal conduct by the ACC management" may not apply to Ament's criminal conduct because it may not be tied to obligations owed under the parties' agreement and/or because Ament had already resigned and was therefore no longer part of ACC management by the time Defendant terminated the agreement. Defendant's demurrer contends only that the Court has already previously ruled that ¶ 5 of the agreement is "unambiguous." (ROA #66 [Dem. P&A], p. 9.) But this mischaracterizes the Court's previous ruling, as explained above. The Court's previous ruling was not that broad. The Court ruled only that termination "due to . . . fraudulent or criminal conduct by the ACC management" is not subject to the 30-day notice to cure provision in the second sentence of ¶ 5. The Court did not previously address or decide whether the phrase "criminal conduct by the ACC management" was unambiguous or whether Plaintiff's newly added allegations in the FAC present a reasonable interpretation of that phrase. Accordingly, the Court **OVERRULES** the instant demurrer as to the 1st cause of action for breach of contract in light of the FAC's new allegations. **2. 2nd Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing** Defendant contends that because the 2nd cause of action is "based on the same alleged conduct (termination of the Agreement) and seeks the same relief" as the 1st cause of action for breach of contract, the 2nd cause of action is duplicative and therefore not independently actionable. (Dem. P&A at p. 10.) To establish a claim for breach of the covenant, the complaint must allege that "the conduct of the defendant, whether or not it also constitutes a breach of a consensual contract term, demonstrates a failure or refusal to discharge contractual responsibilities, prompted not by an honest mistake, bad judgment or negligence but rather by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement." (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395.) "Just what conduct will meet this criteria must be determined on a case by case basis and will depend on the contractual purposes and reasonably justified expectations of the parties." (*Id.*) Here, at this stage of the litigation, Plaintiff has sufficiently pleaded facts demonstrating Defendant's failure or refusal discharge contractual

		responsibilities was prompted by a conscious and deliberate act—namely, to distance itself from political and public scrutiny and to consolidate control over programs and funding within Defendant's own organization, including by stealing Plaintiff's core business model. (FAC, ¶¶ 110-113.) Plaintiff has sufficiently pleaded that this unfairly frustrated the agreed common purposes of the parties' agreement and disappointed Plaintiff's reasonable expectations and deprived Plaintiff of the benefits of the agreement. Therefore, this is not a situation where the complaint's "allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action," such that the 2nd cause of action "may be disregarded as superfluous as no additional claim is actually stated." (*Careau*, *supra*, 222 Cal.App.3d at p. 1395.) Accordingly, the Court also **OVERRULES** the demurrer as to the 2nd cause of action for breach of the implied covenant of good faith and fair dealing in light of the FAC's new allegations. **3. 3rd Cause of Action for Intentional Interference with Contractual Relations, 4th Cause of Action for Negligent Interference with Prospective Economic Advantage, and 5th Cause of Action for Intentional Interference with Prospective Economic Advantage** "The elements of a cause of action for intentional interference with contract are: (1) a valid contract between plaintiff and a third party; (2) defendants' knowledge of the contract, (3) defendants' intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (*Tuchscher Development Enterprises, Inc. v. San Diego Unified Port Dist.* (2003) 106 Cal.App.4th 1219, 1239.) The elements of a claim for intentional interference with prospective economic advantage are (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional wrongful acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant." (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1153-1154, internal quotes omitted.) As the "wrongfulness" requirement is concerned, the plaintiff must plead and prove that "the defendant's conduct was wrongful by some legal measure other than the fact of interference itself"—i.e., that "the defendant engaged in an independently wrongful act." (*Id.* at pp. 1153, 1158, internal quotes omitted.) "[A]n act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard." An act is

		not independently wrongful merely because the defendant acted with an improper motive. (*Id.* at p. 1159.) This "wrongfulness" element applies to claims for Negligent Interference as well. See *Lange v. TIG Ins. Co.,* (1998) 68 Cal. App. 4th 1179, ["for negligent interference, a defendant's conduct is blameworthy only if it was independently wrongful apart from the interference itself,"]. In this case, Plaintiff's allegations, once again, appear to be nothing more than repackaging the breach of contract alleged in the 1st and 2nd causes of action into the constituent consequences of the breach. (FAC, ¶¶ 121-126, 144-151.) Such allegations of breach and the cascading economic fallout from that breach are insufficient to state a cause of action for any genre of "economic interference." > "Because a bare breach of contract, without more, is not tortious, such a breach cannot constitute independently wrongful conduct capable of giving rise to the tort of intentional interference with a prospective economic advantage. (*Cates, supra*, 21 Cal.4th at p. 54 ["'[a] contracting party's unjustified failure or refusal to perform is a breach of contract, and cannot be transmuted into tort liability by claiming that the breach detrimentally affected the promisee's business'"]; *Arntz, supra*, 47 Cal.App.4th at pp. 478–479 [dismissing claim for intentional interference with a prospective economic advantage premised on defendant's breach of a contract with the plaintiff]; *JRS Products, supra*, 115 Cal.App.4th at p. 183 [same]; *Deerpoint Group, Inc. v. Agrigenix, LLC* (E.D.Cal. 2018) 345 F.Supp.3d 1207, 1235 ["Under California law, a breach of contract cannot constitute the 'wrongful' conduct required for the tort of interference with prospective economic advantage"].) *Drink Tank Ventures LLC v. Real Soda in Real Bottles, Ltd*., (2021)71 Cal. App. 5th 528, 540 In *SIC Metals, Inc. v. Hyundai Steel Co.,* (C.D. Cal. 2020) 442 F. Supp. 3d 1251, a federal district court applying California law addressed a scenario where a party's termination of one contract caused a downstream cascade that disrupted a third party's separate contract. Hyundai stopped purchasing steel from Prime (its direct counterparty), which caused Prime to stop purchasing from SIC (a third party with whom Prime had a separate supply contract). The court held that Hyundai could not be held liable for interference with the SIC-Prime contract because Hyundai was acting to enforce its own contractual rights, and the harm to SIC was purely incidental to that legitimate enforcement. > "If the [defendant] is not acting criminally nor with fraud or violence or other means wrongful in themselves but [instead] is endeavoring to advance some interest of his own, the fact that he is aware that he will cause interference with the plaintiff's contract may be regarded as such a minor and incidental consequence and so far removed from the defendant's objective that as against the plaintiff the interference may be found to be not improper."

Id. at 1257 [citing *Quelimane Co.*, (1998) 19 Cal. 4th 26, 56 (quoting Restatement 2d of Torts § 766).

Accordingly, the Court **SUSTAINS** the demurrer as to the 3rd, 4th and 5th causes of action for intentional interference with contractual relations and intentional and negligent interference with prospective economic advantage, but with leave to amend.

4. 10th Cause of Action for Retaliatory Termination in Violation of Public Policy

Defendant demurs to this cause of action on the following grounds: (1) to the extent Plaintiff seeks to assert a common-law claim based on termination allegedly violating public policy, California confines such claims to the employment context and has refused to extend such claims to contracts involving a commercial contract, citing *Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167 and *Harris v. Atlantic Richfield Co.* (1993) 14 Cal.App.4th 70; (2) Plaintiff's claim also independently fails because it directly conflicts with Defendant's express contractual right to terminate the agreement; and (3) Plaintiff's citation to the Anaheim Municipal Code does not save this cause of action because it does not create a private right of action for "retaliatory termination," "abuse of discretion in the administration of public funds," or any similar theory. (Dem. P&A at pp. 13-15.)

The entirety of Plaintiff's opposition to these points are the following two sentences:

> 36. The gravamen of Defendant's argument against this claim is that there can be no "retaliation" because Defendant's termination was permitted under the contract because of the alleged "criminal" conduct. (Demurrer pgs. 13-14).
>
> 37. Again, this argument goes beyond the pleadings stage, and attempts to impermissibly litigate the merits of the claims – not whether they are adequately plead.s [*sic*]

(Opp. at p. 6.)

At most, this barebones "argument" addresses only Defendant's second point. As to Defendant's other two points, since Plaintiff's opposition does not address them, Plaintiff may be deemed to have conceded those points. (*DuPont Merck Pharmaceutical Co. v. Super. Ct.* (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"].)

Therefore, the Court **SUSTAINS** the demurrer as to the 10th cause of action.

The Court also does so **WITHOUT LEAVE TO AMEND. N**otably, Plaintiff's opposition does not request leave to amend as to this cause of action, in contrast to other causes of action. (See e.g., Opp. at ¶¶ 24, 32, 44.) As noted above, it is Plaintiff's burden to articulate how the complaint can be cured by amendment. (*Schaeffer*, *supra*, 44 Cal.App.5th at p. 1145.) Given that California does not recognize a "tort of breach of commercial contract in violation of public policy" (*Harris*, *supra*, 14 Cal.App.4th at p. 82), it is also not apparent to the Court that there is a potentially effective amendment consistent with Plaintiff's theory of the case.

5. 11th Cause of Action for Declaratory Relief

Under CCP section 1060, to allege facts sufficient to state a cause of action for declaratory relief, the plaintiff must allege two essential elements: (1) a proper subject of declaratory relief (e.g., rights with respect to another regarding property or a written instrument other than a will or trust) and (2) an actual controversy involving justiciable questions relating to the right or obligations of a party. (*Childhelp, Inc. v. City of Los Angeles* (2023) 91 Cal.App.5th 224, 235.)

"Declaratory relief operates prospectively—a remedy to be used in the interests of preventive justice, to declare rights rather than execute them." (*Cordoba Corp. v. City of Industry* (2023) 87 Cal.App.5th 145, 156-157, internal quotes omitted.) Indeed, "[a] controversy is ripe when it has reached, but has not passed, the point that the facts sufficiently have congealed to permit the court to issue a useful decision. The purpose of the declaration is to allow the parties to shape their conduct to avoid a breach. There is no basis for declaratory relief where only past wrongs are involved." (*Id.* p. 157, internal citations omitted.)

"The grant or denial of declaratory relief is within the discretion of the trial court." (*Id.* at p. 156, citing CCP § 1061 ["The court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances."].) "The purpose of a declaratory judgment is to serve some practical end in quieting or stabilizing an uncertain or disputed jural relation." (*Id.*, internal quotes omitted.) Indeed, if a complaint alleges that there would be an "ongoing contractual relationship" between the parties despite a breach of contract, declaratory relief may be properly sought. (See *id.* at pp. 372, 375.) However, "[t]here is no basis for declaratory relief where only past wrongs are involved." (*Cordoba*, *supra*, 87 Cal.App.5th at p. 157.)

Here the complaint alleges a completed "wrong" or breach of contract. The parties positions are sufficiently crystalized to permit full adjudication. This case involves "past wrongs" and the parties do not seek any relief that would guide them in any "ongoing contractual relationship." Declaratory relief would serve no purpose in this circumstance.

Accordingly, the Court also **SUSTAINS** the demurrer as to the 11th cause of action for declaratory relief but with leave to amend.

Defendant shall give notice.

102	**Xiong vs. Jeunesse Global, LLC** **2019-01095448**	**1. Motion for Leave to File Amended Complaint** **2. Order to Show Cause re: striking DEF Jeunesse's answer** Plaintiff's Motion for Leave to File a Second Amended Complaint is GRANTED. Plaintiff is to file and serve the Second Amended Complaint within 10 calendar days of this ruling. Legal Authority A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located. CRC 3.1324(a). A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. CRC Rule 3.1324(b). The court finds plaintiff's moving papers substantially comply with these requirements. ROA 518, 520. Motions for leave to amend a pleading are directed to the sound discretion of the court. CCP §§ 473(a)(1), 576. Courts may permit amendments at any stage in the proceedings, up to and including trial, so long there is no prejudice to the adverse party. Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761. Delay in requesting leave to amend will not support denial of leave to amend unless the delay caused prejudice. Higgins v. Del Faro (1981) 123 Cal.App.3d 558. Increased discovery and attorneys' fees are not sufficient "prejudice": "it seems unreasonable to deny a party the right to amend where the only apparent hardship to the defendants is that they will have to defend." Landis v. Superior Court (1965) 232 Cal.App.2d 548, 557. Indeed, it is a "rare case in which denial of leave to amend can be justified." Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428; see also Central Concrete Supply Co v. Bursak (2010) 182 Cal.App.4th 1092, 1101-1102 ("Courts must apply a policy of great liberality in permitting amendments to the complaint when no prejudice is shown to the adverse party."). The motion is unopposed other than as to defendant Kim Hui. Defendant Hui opposes the amendment based on its contention that the PAGA claims are time-barred and/or were released in a prior settlement. See ROA 535. However, instead of the sufficiency of the claims, which is properly the subject of a demurrer, the focus of the court's inquiry here is whether prejudice would result from the proposed amendment. As the PAGA claims have not changed and defendant fails to identify any prejudice, the motion must be granted. See Fair v. Bakhtiari (2011) 195 Cal.App.4th 1135, 1147 ("where there is no prejudice to the adverse party, it may be an abuse of discretion to deny leave to amend"); Hutcheson v. Superior Court (2022) 74 Cal.App.5th 932 (holding the relation back doctrine applies to a substitute PAGA plaintiff stepping into a PAGA action to replace an

		existing PAGA plaintiff who no longer wanted to prosecute the same PAGA claims that the substitute representative was willing to prosecute). **OSC re: Striking Answer of Defendant Jeunesse** No tentative ruling. The court will make its ruling at the hearing. Moving party to give notice.
103	**Hai vs. Cognizant Trizetto Software Group, Inc.** **2026-01563501**	**1. Motion to Compel Arbitration** **2. Case Management Conference** Defendant Cognizant Trizetto Software Group, Inc.'s motion to compel arbitration is **GRANTED**. Plaintiff Jamil Hai's evidentiary objections are all **OVERRULED**. As an initial matter, Plaintiff does not dispute that the subject arbitration agreement is governed by the Federal Arbitration Act (FAA); that he has refused arbitration; that the agreement applies to his individual claims if the agreement is found to exist; or that if the agreement is found to exist, the Court could compel Plaintiff's individual PAGA claim to arbitration while staying Plaintiff's non-individual PAGA claim in this action. Instead, Plaintiff contends that (1) Defendant has failed to satisfy its burden of proving the existence of the agreement; and (2) if an agreement was formed, the agreement is unconscionable and should not be enforced. **Existence of the Agreement** Both the Federal Arbitration Act ("FAA") and the California Arbitration Act ("CAA") require the existence of a valid arbitration agreement before arbitration can be compelled. (See 9 U.S.C. § 2; Code Civ. Proc. [CCP], § 1281.2.) A trial court must order arbitration if it determines that an agreement to arbitrate the controversy exists. (CCP, § 1281.2.) The petitioner bears the initial burden of producing prima facie evidence of a written agreement to arbitrate the controversy, which can be satisfied either by setting forth the agreement's provisions in the motion or by attaching to the motion a copy of the arbitration agreement purporting to bear the opposing party's signature; "[f]or this step, it is not necessary to follow normal procedures of document authentication." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal quotes omitted; see also Cal. Rules of Court [CRC], rule 3.1330 [requiring same].) The burden then shifts to the opposing party to produce evidence to challenge the authenticity of the agreement. (*Gamboa*, *supra*, 72 Cal.App.5th at p. 165.) "If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (*Id.* at pp. 166-167.)

The petitioner must satisfy their burden “by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842, internal citations omitted.)

Here, Defendant presented a declaration by its Senior Manager-Human Resources, Kerstin Aukerman, who has been employed by Defendant since January 1, 2016. (ROA #13 [Auckerman Decl.], ¶ 2.) Auckerman attests that she is familiar with the employee onboarding process, including how new Cognizant employees sign arbitration agreements and how those agreements are stored. (*Id.* at ¶ 3.) Auckerman attests the process is as follows:

- ¶ 4. New hire paperwork is distributed electronically to employees. Once a candidate accepts their offer of employment with Cognizant, they are sent an email with a link to Cognizant’s OnBoarding application, which is authenticated on the Microsoft Azure system. That link leads the new hire to a login page for the “Cognizant OnBoarding” application, where the new hire logs in using the unique username and password the new hire created during the application process.

- ¶ 5. Once in the Cognizant OnBoarding application, the new hire clicks on the link for “Pre Joining Formalities,” which leads to a list of individual links for documents to be reviewed and signed. To review each document, the new hire clicks the “Start Now” button next to the document name, which opens a dialogue box with the relevant document. The new hire can then read each document in its entirety.

- ¶ 6. To sign the documents included in new hire paperwork, including the arbitration agreement, the new hire has to click a box next to an Acknowledgment statement at the end of the document along with the correct “Authentication Key,” which is populated in the system. The Authentication Key is an alphanumeric code sent to each new hire via email. When the new hire checks the acknowledgment box, the new hire's name and Authentication Key is automatically entered on the document using information from their candidate profile. The new hire then clicks “Submit” to sign. There is then a pop up message that says, “form signed successfully.” Any candidate could then individually print any signed document.

- ¶ 7. All new hire paperwork, including signed arbitration agreements, is then stored in Cognizant’s HR e storage platform in the regular course of Cognizant's business.

		Auckerman also attests as follows as to the agreement she contends was signed by Plaintiff: • ¶ 8. Attached hereto as Exhibit A is a true and correct copy of the Arbitration Agreement electronically signed by Jamil Hai, as maintained in Cognizant's e-storage platform in the regular course of Cognizant's business. I obtained a copy of this Arbitration Agreement by searching for Mr. Hai's employee profile in Cognizant's HR e-storage website using his associate ID. I then downloaded a PDF of the electronically signed agreement. I did not alter this file in any way. • ¶ 9. The Arbitration Agreement was electronically signed on May 25, 2022 by Jamil Hai. • ¶ 10. At the time Mr. Hai signed the Arbitration Agreement, the onboarding process I described above was in place. In short, although it was not necessary for Defendant, in its initial moving papers, to follow normal procedures of document authentication, Defendant nevertheless offered evidence on authentication. In opposition, Plaintiff does not attest that he did not electronically sign the agreement. In fact, Plaintiff attests that he received the email with the link to complete the onboarding paperwork, and that he "completed the onboarding paperwork by [him]self, at home, on [his] personal Mac computer." (ROA #25 [Hai Decl.], ¶¶ 2-7.) Plaintiff also attests that he "had technical problems throughout the onboarding process," and the only examples he gives are that "the portal would not populate [his] apartment number correctly in the address field," and that he "had trouble opening and reading certain onboarding materials on [his] Mac." (*Id.* at ¶ 8.) Plaintiff does not identify the arbitration agreement as one such material. Plaintiff also admits that on May 24, 2022 at 9:50 p.m. Pacific time, he "emailed Cognizant's onboarding IT support address," and although he does "not specifically remember doing new-hire paperwork that late at night, but [his] emails show that [he] was working on the onboarding paperwork at 9:50 p.m. that night." (*Id.* at ¶ 9.) Plaintiff also admits that the arbitration agreement submitted by Defendant "bears a stamp stating that the [final] page was 'signed by Jamil Hai on May 25 2022 05:00 (GMT)," and that "May 25, 2022 at 05:00 GMT corresponds to 10:00 p.m. Pacific time on the night of Tuesday, May 24, 2022 ." (*Id.*) Based on all the evidence presented by both sides, and after weighing the credibility of the declarants, the Court finds that Plaintiff electronically signed the subject agreement. (See Civ. Code, § 1633.9, subds. (a) ["An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner,

		including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable."].) The Court finds that the only way Plaintiff's electronic signature could have appeared on the agreement was by Plaintiff using the unique login and password he himself created to log into the onboarding portal. That Plaintiff contends that he does "not remember ever seeing the 'Mutual Arbitration Agreement' at any time before [his] attorney sent it to [him] in connection with this Motion" does not mean Plaintiff did not see it or sign it. (*Id.* at ¶ 14.) Moreover, as Plaintiff admits, "that week was hectic for [him]." (*Id.* at ¶ 9.) Plaintiff also presents a later email exchange between him and "NAOnboarding@cognizant.com" on 6/2/2022 in which Plaintiff stated he was "having a bit of a hard time opening the attachments." (*Id.* at Exh. D.) However, there is no explanation as to which "attachments" he is referring to in this email. (See *id.* at ¶ 11.) The Court does not find this evidence sufficient to call into question that Plaintiff did not receive or sign the subject agreement. Therefore, the Court finds that the subject arbitration agreement exists between the parties. **Enforceability of the Agreement** "Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement." (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 241.) "There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability." (*Id.*, citing *Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 68-69, 70, fn. 1.) Although the parties did not address the delegation clause in their papers on this motion, the Court finds that the parties' arbitration agreement clearly and unmistakably delegates enforceability of the arbitration agreement to the arbitrator in Section D, which reads as follows: "A court of competent jurisdiction, not an arbitrator, must resolve issues concerning the enforceability or validity of the Collective Proceeding Waivers set forth in Section C above. All other disputes regarding the scope, validity, applicability, enforceability or breach of this Agreement, or the arbitrability of any Claim, must be resolved in arbitration under this Agreement." In Plaintiff's opposition, Plaintiff did not present any arguments that the delegation clause itself is unconscionable. Indeed, challenges to the enforceability of a delegation clause must be "specific to the delegation provision," and not just at "the arbitration agreement as a whole." (*Rent-A-Center*, *supra*, 561 U.S. at p. 73, emphasis omitted.) While a party may cite provisions outside the delegation clause in making an

		unconscionability challenge to the delegation clause, the party "must explain how those provisions make *the fact of an arbitrator deciding [enforceability]* unconscionable." (*Holley-Gallegly v. TA Operating, LLC* (2023) 74 F.4th 997, 1002, emphasis original, citing *Rent-A-Center*, *supra*, 561 U.S. at p. 74; see also *Tiri*, *supra*, 226 Cal.App.4th at p. 243, emphasis original ["any claim of unconscionability must be *specific to the delegation clause*"].) Therefore, the Court finds that the parties have delegated the question of enforceability of the agreement to the arbitrator. This ends the Court's inquiry under Code of Civil Procedure (CCP) section 1281.2, and the Court need not consider the remainder of Plaintiff's arguments as to whether the agreement is unconscionable as a whole such that the agreement should not be enforced. **Class Claims** Plaintiff's only argument that the class claims cannot be dismissed is that Defendant "has not proven and cannot conscionably enforce" the agreement, which contains a class action waiver. (Opp. at p. 13.) However, as explained above, the Court has ruled that the agreement exists and that issues of the agreement's general enforceability are delegated to the arbitrator. Therefore, Plaintiff is **ORDERED** to arbitrate his individual claims against Defendant, including Plaintiff's individual PAGA claim against Defendant. Plaintiff's class claims against Defendant are hereby **DISMISSED**. This action is **STAYED** until the arbitration is had pursuant to Code of Civil Procedure section 1281.4. **An ADR review hearing is scheduled for July 8, 2027 at 9:30AM in Department CX102**. The parties shall submit a joint status report 10 days in advance of the hearing. Defendant shall give notice.
104	**David Goldman v. LBG Real Estate Companies, LLC** **2025-01498037**	**Motion to Seal** Third Parties Leslie Lundin and Douglas Beiswenger's Motion to Seal Documents Filed in Support of David Goldman's Supplemental Moving Papers In Support Of His Motion For Receiver For LBG Real Estate Companies, LLC As Authorized By The Order Of This Court Dated January 22, 2026 is **GRANTED**. Third Parties seek to seal unredacted versions of the following: 1. Plaintiff David Goldman's Supplemental Moving Papers Support of His Motion for Receiver for LBG Real Estate Companies, LLC As Authorized by the Order of This Court Dated January 22, 2026 (the "Supplemental Moving Papers"), (Unredacted Version Filed Conditionally Under Seal);

		2. Declaration of Ethan J. Brown In Support of Plaintiff David Goldman's Supplemental Moving Papers Support of His Motion for Receiver for LBG Real Estate Companies, LLC As Authorized by the Order of This Court Dated January 22, 2026 Volume 1 of 2, (Unredacted Version Filed Conditionally Under Seal); 3. Declaration of Ethan J. Brown In Support of Plaintiff David Goldman's Supplemental Moving Papers Support of His Motion for Receiver for LBG Real Estate Companies, LLC As Authorized by the Order of This Court Dated January 22, 2026 Volume 2 of 3, (Unredacted Version Filed Conditionally Under Seal); and 4. Declaration of Ethan J. Brown In Support of Plaintiff David Goldman's Supplemental Moving Papers Support of His Motion for Receiver for LBG Real Estate Companies, LLC As Authorized by the Order of This Court Dated January 22, 2026 Volume 3 of 3 (collectively the "Brown Declaration"), (Unredacted Version Filed Conditionally Under Seal). Third Parties move to seal attorney-client privileged information relating to the amount of attorneys' fees paid in ongoing litigation. "Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court [CRC], rule 2.550(c).) "The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest." (CRC, rule 2.550(d).) However, this rule "does not apply to records that are required to be kept confidential by law" (CRC, rule 2.550(a)(2)), such as "[a] document which is protected by the lawyer-client privilege[, which] is not subject to the [CRC rule 2.550(d)] findings requirements." (*Huffy Corp. v. Super. Ct.* (2003) 112 Cal.App.4th 97, 108). Overriding interests include a substantial probability that the movant's privacy rights will be adversely affected if the record is not sealed. (See, e.g., *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 503, internal quotes & citations omitted [right to privacy "extends to one's confidential financial affairs" and "embraces confidential financial information in whatever form it takes, whether that form be tax returns, checks, statements, or other account information"]; *Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Super. Ct.* (2006) 137 Cal.App.4th 579, 594 ["Although corporations have a lesser right to privacy than human beings and are not entitled to claim a right to privacy in terms of a fundamental right, some right to privacy exists"]; see also *Universal City Studios, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1273,

		1286 [denying motion to seal due to public disclosure, but finding that normally, sealing is appropriate where "information involves confidential matters relating to the business operations of defendant" and "public revelation of these matters would interfere with its ability to effectively compete in the marketplace"].) Here, on 5/15/2026, the Court sustained Third Parties' attorney-client privilege objections related to the documents at issue and ordered that any papers filed by Goldman containing the privileged information be stricken from the record. (ROA #226.) Thus, granting the motion to seal this information is consistent with the Court's previous ruling, and the Court need not make additional express findings under CRC, rule 2.550(d). Accordingly, the Court **ORDERS** that the unredacted versions of the above-listed documents that had been filed conditionally under seal now be permanently sealed. Moving parties shall provide notice.
105	**Fernandez vs. Michael Nicholas Designs** **2023-01362788**	**Motion for Final Approval Class/PAGA Settlement** Plaintiffs Monica Fernandez and Eva Zavala's Motion for Final Approval of Class Action and PAGA Settlement is **GRANTED**. This is a putative wage-and-hour class action and PAGA matter. On 11/17/2023, Plaintiff Monica Fernandez, individually and on behalf of all others similarly situated, filed a class action against Defendant Michael Nicholas Designs, Inc. The operative complaint is the second amended complaint (SAC), filed on 8/26/2024 per the parties' stipulation and court order. (ROA #42.) The SAC added Eva Zavala as a plaintiff and alleges 8 causes of action for various Labor Code wage-and-hour violations and unfair business practices. On 2/4/2025, Plaintiffs further amended the complaint to name Michael Nicholas Designs, LLC as Defendant Doe 1. (ROA #61.) On 5/23/2025, Plaintiffs filed the motion for preliminary approval. (ROA #100.) On 2/19/2026 at the second hearing on the motion, the Court granted the motion. (ROA #129.) On 3/3/2026, the Court signed the order granting preliminary approval. (ROA #134.) On 5/11/2026, the Court signed a stipulated amended order granting preliminary approval. (ROA #152.) On 8/5/2026, Plaintiffs filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #173.) The motion seeks approval of the Class Action and PAGA Settlement Agreement and Class Notice and First Amendment to Class Action and PAGA Settlement Agreement (collectively with original settlement agreement, "Settlement Agreement"), which provide for the settlement of Plaintiffs' class and PAGA claims for the non-reversionary gross settlement amount ("GSA") of $773,360. The GSA includes $40,000 allocated for PAGA penalties.

		The Class is comprised of 921 Class Members, defined as "all individuals who worked as non-exempt employees of Defendants Michael Nicholas Designs, LLC and/or Michael Nicholas Designs, Inc. in California at any time during the Class Period." The Class Period is 3/23/2021 through 6/30/2025.
		
		The settlement also includes 619 Aggrieved Employees, defined as "all individuals who worked as nonexempt employees of Defendants Michael Nicholas Designs, LLC and/or Michael Nicholas Designs, Inc. in California at any time during the PAGA Period." The PAGA Period is 11/17/2022 through 6/30/2025.
		
		The settlement administrator, Phoenix Settlement Administrators, reports as follows:
		
		• On 5/14/2026, the administrator sent class notices via U.S. Mail to 921 Class Members, including 619 Aggrieved Employees .
		• As of 7/26/2026:
		    o Zero (0) class notices were returned to the administrator as undeliverable
		    o Two requests for exclusion were received from Cory Nakanaela Kaleikau Hachten and Richard Kim.
		    o Zero (0) objections and zero (0) workweek disputes were received.
		
		Therefore, 919 or 921 (or 99.8%) of the Class is participating in the settlement.
		
		The Court concludes that the $773,360 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. The Court also certifies the defined Class for settlement purposes only.
		
		The Court concludes that an attorneys' fee award totaling $223,008.00 or 30% of the GSA, constituting a 1.71 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action's contingent nature and the results achieved.
		
		The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage. Additionally, the Court finds that Class Counsel has not properly supported its $450 estimate for future anticipated costs with any line-item cost estimates for filing this motion, final declaration regarding distribution of settlement, service and messenger fees, and/or postage fees. Therefore, the Court deducts $93.69 from the requested already-incurred amount attributed to postage, as well as the $450 attributed to future anticipated costs, and awards $11,388.82 total in costs.
		
		The Court further concludes that a Class Representative Service Payment of $5,000 per named Plaintiff is fair, adequate, and reasonable for a class

		and settlement of this size, considering that there was nothing extraordinary about either Plaintiff's contribution to the case.
		
		Accordingly, the Court approves the following specific awards and disbursements from the GSA:
		
		• Attorneys' fees totaling $232,008.00 awarded to Class Counsel, allocated as follows per counsel's fee-splitting agreement as approved by Plaintiffs:
		    o 46.5% or $107,883.72 to Haines Law Group, APC;
		    o 31% or $71,922.48 to Lidman Law, AP; and
		    o 22.5% or $52,201.8 to Michael Burgis & Associates, P.C.
		• Litigation costs totaling $11,388.32 awarded to Class Counsel Lidman Law, AP;
		• Settlement administration costs of $13,500.00 awarded to Phoenix Settlement Administrators;
		• Class Representative Service Payment of $10,000.00 total, with $5,000.00 awarded to Plaintiff Monica Fernandez and $5,000.00 awarded to Plaintiff Eva Zavala; and
		• $30,000.00 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties.
		
		The Net Settlement Amount payable to all Class Members is $476,463.68, including the $10,000.00 in PAGA penalties to be distributed to the Aggrieved Employees, in accordance with the terms of the Settlement Agreement. Pursuant to the Settlement Agreement, Defendants are ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments.
		
		Within five (5) court days, Class Counsel must submit a revised Proposed Order of Final Approval and Judgment with the following revisions:
		
		1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
		2. The proposed order and judgment should identify the amended settlement agreement by its actual name.
		3. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
		4. The proposed order and judgment should remove the injunction language from ¶ 17 (", and will be permanently barred from prosecuting against Defendants any of the Released Claims pursuant to the Settlement").
		5. The proposed order and judgment should state that the Court's continuing jurisdiction is pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).
		6. The proposed order and judgment should state that the settlement administrator will post a copy of the order and judgment on the website for 180 days.

		7. The proposed order and judgment should state that the Final Accounting hearing will be set for 10/14/2027 at 2:00 p.m., as this Court hears Law & Motion matters on Thursdays. 8. The proposed order and judgment should state that the settlement administrator's final report should be filed at least 16 court days before the Final Accounting hearing. **Final Accounting is set for 10/14/2027, at 2:00 p.m. in Department CX102.** Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs are ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.
106	**Logue vs. JHA Remediation LLC** **2024-01384205**	**Status Conference**
107	**Logue vs. JHA Remediation LLC** **2024-01401183**	**1. Motion for Approval of PAGA Settlement** **2. Status Conference** The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that with a few minor exceptions, they adequately address the previously identified issues. Accordingly, Plaintiff Corey Logue and Defendants' JHA Remediation, LLC and JHA Environmental, Inc.'s joint Motion for Approval of Representative PAGA Settlement is **CONDITIONALLY GRANTED**, pending the resolution of the issues identified below. This is a PAGA-only action. On 5/21/2024, Plaintiff Corey Logue filed a PAGA complaint against Defendants JHA Remediation LLC and JHA Environmental, Inc., seeking PAGA penalties for Defendants' alleged (1) failure to provide meal

		breaks; (2) illegal rounding of time worked; (3) failure to pay proper rates for overtime work; (4) were not paid all wages due upon separation from employment; and (5) were not provided accurate wage statements. (ROA #2.) On 5/29/2026, Defendants answered. (ROA #8.) On 5/29/2026, Defendants filed a notice of related case regarding *Logue v. JHA Remediation LLC*, OCSC Case No. 2024-01384205. In that case, the same Plaintiff filed a complaint against the same Defendants on 3/5/2024, alleging 13 causes of action for various Labor Code violations, plus claims of discrimination based on disability, violation of the right to family care and medical leave, retaliation, whistleblower protection, wrongful discharge, and unfair competition. (ROA #2 in Case No. 2024-01384205.) On 1/28/2026, Plaintiff, jointly with Defendants, filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court's review the Private Attorneys General Act (Labor Code § 2698 Et Seq.) Settlement Agreement ("Settlement Agreement"). The motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of $115,000. On 6/11/2026, the Court continued the first hearing on the Motion and asked Plaintiff's Counsel to address various issues with the moving papers. (ROA #157.) Counsel has submitted supplemental materials, including the Private Attorneys General Act (Labor Code § 2698 Et Seq.) Settlement Agreement (Amended) ("Amended Settlement Agreement"). The settlement includes the claims of 44 PAGA Aggrieved Employees, defined as "all current and former non-exempt employees who worked for JHA Remediation LLC, and/or JHA Environmental, Inc., in the State of California from March 6, 2023, through September 12, 2025." This period is also known as the PAGA Period. Based on a review of all submissions made in support of the Motion, the Court finds the settlement is fair, adequate, and reasonable. The Court concludes that an attorneys' fee award totaling $34,500.00 or 30% of the GSA, constituting a 0.94 multiplier against the lodestar amount reported by counsel (see ROA #157, ¶ 2; see also ROA #133 at ¶¶ 13-14), is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved. The Court has identified the following issues with proposed notice/cover letter that will accompany the settlement checks to the aggrieved employees (ROA #155, Exh. 3). Counsel must submit a revised proposed notice/cover letter that addresses these issues before the Court will sign the Order Granting Approval of PAGA Settlement and Judgment: 1. The case name and number should appear in the header at the top of page 1. 2. The notice/cover letter should describe the factual allegations of the operative complaint.

		3. The specific awards and disbursements set forth in Sections III and VI should be revised to reflect the amounts set forth in this order. 4. Section V's heading has an added "VI." that should be deleted to avoid confusion. 5. Section VI's last paragraph, as well as Sections VII and VIII, all use future and conditional verb tenses and are phrased in a manner that assumes final approval has not yet been granted, that the administrator has not already calculated the amount of each aggrieved employee's individual PAGA payment, and that the aggrieved employee will somehow have an opportunity to provide a different mailing address. However, this is a notice/cover letter that will accompany the settlement check each aggrieved employee is receiving. These issues must be addressed by Plaintiff's counsel **within ten (10) court days.** Upon resolution of these issues, the Court will grant the instant motion and approve the following specific awards and disbursements from the GSA: • Attorneys' fees totaling $34,500.00 awarded to Plaintiff's counsel; • Litigation costs totaling $4,786.75 awarded to Plaintiff's counsel; and • Settlement administration costs of $3,450.00 awarded to ILYM Group, Inc. PAGA penalties in the amount of $72,263.25 shall be allocated as follows: seventy-five percent (75%), or $54,197.44, payable to the Labor and Workforce Development Agency (LWDA); and twenty-five percent (25%), or $18,065.81, payable to the Aggrieved Employees in accordance with the terms of the Amended Settlement Agreement. **Within ten (10) court days**, counsel must submit another revised Proposed Order Granting PAGA Settlement Approval and Judgment with the following revisions: 1. The proposed order should attach all exhibits, including the revised Class Notice. 2. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 3. Paragraph 1 of the proposed order should be further amended to refer to the name of operative Amended Settlement Agreement. **Final Accounting is set for 6/3/2027, at 2:00 p.m. in Department CX102.** Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Aggrieved Employees and all others in accordance with the Settlement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed

		Property Fund/the cy pre recipient. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
108	**Gonzalez vs. Greenleaf Engineering** **2024-01406008**	**Case Management Conference** **CONTINUED TO 11/19/26 AT 2PM**
109	**Gonzalez vs. Greenleaf Engineering** **2024-01384402**	**Motion for Approval of Class/PAGA Settlement** Plaintiff Alonso Sanchez Gonzalez's Motion for Preliminary Approval of Class Action and PAGA Settlement is **CONTINUED to November 19, 2026 at 2:00 p.m. in Department CX102** so that plaintiff can address the issues identified below. 1. Were all moving papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. As to the settlement: 2. The settlement provides that defendant must have determined, prior to this hearing, whether the escalator provision has been triggered and, if so, made its election of the options the settlement provides. ¶ 8.1. This has not been done. 3. The parties should provide the estimated high, low, and average individual class and PAGA payments. 4. The court prefers a 60-day deadline for objections, requests for exclusion, and disputes. ¶¶ 7.5.1, 7.6, 7.7.2.

		5. The last two sentences of ¶ 7.6 should be revised to state: (a) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (b) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. 6. The "Released Parties" provision (¶ 1.41) is overbroad and/or vague. The terms "consultants, partners, shareholders, joint venturers, agents," "accountants, insurers, reinsurers, and/or legal representatives" should be deleted. 7. The releases for both "Participating Class Members" and "Aggrieved Employees" incorporate the definition of the "Operative Complaint." ¶¶ 5.2, 5.4. According to its definition, the "Operative Complaint" is the "First Amended Complaint." ¶ 2.7. The court's file does not reflect that any such amended complaint has been filed. 8. Plaintiff's counsel seeks attorneys' fees equivalent to 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount. Plaintiff's counsel should address at final approval whether any such unique circumstances exist here. 9. Plaintiff seeks an enhancement award in the amount of $7,500. Absent unique circumstances, the court is unlikely to approve an enhancement award in excess of $5,000. Plaintiff should address at final approval whether any such unique circumstances exist here. <u>As to the notice</u>: 10. The notice should be revised consistent with the above. 11. The same issue identified above applies to defendant's option to shorten the class period. At 3 ¶ 2. The notice should not reflect an active option. 12. Delete the sentence starting with "Otherwise stated…" At 3 ¶ 3. 13. Delete the heading "Tax Reporting," but retain the content below it. At 3. 14. The unclaimed funds discussion should also include class members. At 4 ¶ 2. 15. The same issue identified above applies to the definition of "Released Parties." At 4 ¶ 8.

16. Delete the sentence beginning “You may also refer” on page 6. The second sentence of that paragraph should be merged into the paragraph above it.

17. Inform class members and aggrieved employees that (a) settlement documents will be available on the administrator’s website for at least 180 days following entry of judgment, (b) which occurs after the court grants final approval. At 6.

18. The objection form should not state that use of the exclusion form is mandatory, as that is inconsistent with the settlement.

As to the proposed order:

19. The proposed order should be revised consistent with the above.

20. Remove the attorney information from caption page.

21. Identify and attach the settlement and any amendment(s). ¶ 1.

22. Insert “preliminarily” before “certifies.” ¶ 2.

23. Delete the two sentences beginning with “It further appears…” At 2:24, 2:26.

24. The English and Spanish versions of the notice (including all forms) must be identified and exhibited to the order. ¶ 5.

25. Delete the phrase “which, if not escalated pursuant to the Agreement” from paragraph 7.

26. Delete paragraph 9.

27. Delete the remainder of paragraph 10, beginning with “or Defendant can elect…”

28. Change “deems” to “preliminarily approves” in paragraph 11.

29. Delete the entirety of paragraphs 12-23.

30. Add a paragraph which states the court orders the parties, their counsel, and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement.

31. Propose a realistic date for final approval and provide that all papers are “due at least 16 court days prior” to the hearing. ¶ 24. The Court hears such matters on Thursdays at 2PM.

Plaintiff must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Plaintiff must also provide redlined versions of all revised papers,

		including amended settlement provisions, and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court's concerns cannot be filed by the pre-hearing deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
110	**Fajardo Matute vs. Textile Products, Inc.** **2023-01354032**	**Status Conference**
111	**Matute vs. Textile Products, Inc.** **2023-01354041**	**Motion for Approval of Class Settlement** CONTINUED ON COURT'S OWN MOTION IN CONNECTION WITH OSC RE SANCTIONS.

112	**Patterson vs. Pandor Irvine, LLC** **2024-01424770**	**Motion for Approval of Class/PAGA Settlement** Plaintiff Michaila Patterson's Motion for Preliminary Approval of Class Action and PAGA Settlement is **CONTINUED to November 19, 2026 at 2:00 p.m. in Department CX102** in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 9/12/2024, Plaintiff Michaila Patterson, individually and on behalf of all others similarly situated, filed a class action complaint against Defendants Pandor Irvine, LLC; Pandor Irvine II, LLC; Pandor Mission Viejo, LLC; Pandor Newport, LLC; Pandor Orange, LLC; and RTR Bakery, LLC. (ROA #2.) The operative complaint is the first amended complaint, filed on 1/13/2026 pursuant to the parties' stipulation and the Court's order (see ROA #47), alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #51.) On 5/7/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement ("Settlement Agreement") and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of $269,000. The GSA includes $20,000 allocated for PAGA penalties. The Court has identified the following issue with the Settlement Agreement, which must be addressed by the parties before preliminary approval can be granted: 1. The Settlement Agreement provides for funding of the GSA by two equal installments by Defendants, with one installment made on the Effective Date or 10/31/2026, whichever is later, and the other installment made 365 days after the first installment payment or 10/31/2027, whichever is earlier. (Settlement, ¶ D.2.) Then, ¶ D.3 states: "No later than fourteen (14) calendar days after Defendant funds fifty percent (50%) of the Gross Settlement Amount ($134,500), the Administrator will mail fifty percent (50%) of the settlement payments to the appropriate persons and entities. This first disbursement will NOT take place prior to Final Approval. No later than fourteen (14) calendar days after Defendant funds the remaining fifty percent (50%) of the Gross Settlement Amount ($134,500) all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, the Administrator will mail the remaining fifty percent (50%) of the settlement payments to the appropriate persons and entities. The disbursement of the Class Counsel Fees Payment, Class Counsel Litigation Expenses Payment, and Class Representative Service Payment shall not precede disbursement of Individual Class Payments and Individual PAGA Payments."

		The last sentence of ¶ D.3. is problematic because it suggests that the first distribution after Defendant's first 50% installment payment will *not be allocated pro rata* among all "appropriate persons and entities" who are entitled to receive a portion of the GSA, but will instead mostly go to paying Individual Class Payments and Individual PAGA Payments. But if Defendants are ultimately unable to fund the second 50% installment payment, and the funds from the first 50% installment payment have already been fully distributed only to Class Members and Aggrieved Employees, then it would be impossible to claw back those distributions from the initial 50% installment so as to effect a pro rata distribution among all remaining "appropriate persons and entities" entitled to a portion of the GSA. Notably, the proposed Class Notice simply states at ¶ III.1.b.: "No later than fourteen (14) calendar days after Defendant funds fifty percent (50%) of the Gross Settlement Amount ($134,500), the Administrator will mail fifty percent (50%) of the settlement payments to the appropriate persons and entities. No later fourteen (14) calendar days after Defendant funds the remaining fifty percent (50%) of the Gross Settlement Amount ($134,500) all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, the Administrator will mail the remaining fifty percent (50%) of the settlement payments to the appropriate persons and entities." There is no final sentence suggesting that Class Members and Aggrieved Employees will be paid first such that pro rata distribution is no longer possible if Defendant fails to fund the 2nd installment. Class Counsel must also provide the Court with a revised Class Notice with the following revisions: 1. The following sentence should be added after the sentence "Read it carefully!" at the top of p. 1: "You will be deemed to have carefully read and understood it." 2. The following sentences on p. 1 should be bolded: "Your legal rights are affected whether you act or not act." 3. On pp. 1-2, it is confusing to list only 2 options at first and then list 5 options immediately thereafter. These two sections should be combined into a single section that just identifies the 5 main options. 4. On p. 2, the notice states that Class Members cannot object to the PAGA settlement. Likewise, the Request for Exclusion and Objection Forms state that Class Members may only "object to the class action portion of the Settlement." This is incorrect, as Class Members can object to the PAGA settlement—they just cannot opt out. 5. In Sections VI and VII, the notice should explain that opt-out requests and objections may be sent by mail, fax, or email. 6. The notice should specify that the judgment, "whether favorable or not," will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).)

Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions:

1. The proposed order should be revised to incorporate the relevant revisions identified above, including attaching the revised Class Notice.
2. The date for the preliminary approval hearing should be updated to reference the continued hearing date.
3. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
4. All terms that require definition must either be defined in the proposed order itself or clearly incorporate by reference definitions found elsewhere in the record.
5. Counsel should not leave blank but should instead propose a realistic Final Approval hearing date, taking into account the deadlines associated with mailing and remailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys' fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff's declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.

The Court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar.

Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court's concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.

113	**Parrilla vs. Ethika, Inc.** **2023-01362838**	**Motion for Approval of Class/PAGA Settlement** Plaintiff Oksana Parrilla's Motion for Preliminary Approval of Class Action and PAGA Settlement **is CONTINUED to November 19, 2026 at 2:00 p.m. in Department CX102** in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 11/21/2023, Plaintiff Oksana Parrilla, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant Ethika, Inc. (ROA #2.) On 1/26/2024, Defendant answered. (ROA #13.) The operative complaint is the first amended complaint (FAC), filed on 3/3/2026 pursuant to the parties' stipulation and the Court's order (ROA #72), alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #77.) On 4/6/2026, Defendant answered the FAC. (ROA #80.) On 5/19/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Joint Stipulation of Class Action and PAGA Settlement and Release ("Settlement Agreement") and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of $550,000. The GSA includes $25,000 allocated for PAGA penalties. The Court has identified the following issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 2. Class Members must have the option of submitting requests for exclusion, objections, and workweek disputes by fax and email in addition to by mail. 3. As worded, the definition of Released Class Claims at ¶ VI.A. of the Settlement Agreement is not properly tethered to only claims that were or reasonably could have been asserted based on the facts alleged in the complaint. Therefore, the release should be revised to state: "any and all wage-related claims, rights, demands, damages, liabilities, and causes of action, in law or in equity, *that were or reasonably could have been asserted based on the facts alleged in the complaint,* as defined herein, against Defendant, *including the following claims for*: . . . ." (Emphasis added to denote edits.) 4. As worded, the definition of Released PAGA Claims at ¶ VI.B. of the Settlement Agreement is not properly tethered to only claims that were or reasonably could have been asserted based on the facts alleged in Plaintiff's PAGA Notice to the LWDA. Therefore, the release should be revised to state: "any and all claims, actions, and causes of action for PAGA civil penalties, *that were or reasonably could have been asserted based on the facts alleged in the PAGA Notice*, as defined herein, against Defendant, *including claims for*

		PAGA penalties based upon or arising out of Defendant's alleged violations of . . . ." Class Counsel must also provide the Court with a revised Class Notice with the following revisions: 1. The notice should be revised so as to be consistent with the resolution of the issues identified above. 2. The notice should state that any Class Member who does not request exclusion may, if the Member so desires**,** enter an appearance through counsel. (Cal. Rules of Court [CRC], rule 3.766(d)(5).) 3. The notice should specify that the judgment, "whether favorable or not," will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).) Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions: 1. The proposed order should be revised to incorporate the relevant revisions identified above, including attaching the revised Class Notice. 2. Attorney information must be deleted from the caption page. 3. The date for the preliminary approval hearing should be updated to reference the continued hearing date. 4. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached. 5. The proposed order should specify the amount of the GSA and the amounts proposed to be allocated from the GSA to attorneys' fees, litigation costs, enhancement(s), administration costs, and PAGA penalties (including to the LWDA and to Aggrieved Employees). 6. Counsel should not leave blank but should instead propose a realistic Final Approval hearing date, taking into account the deadlines associated with mailing and remailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys' fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff's declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date. 7. The proposed order should specify the Court's continuing jurisdiction is pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). The Court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's

		website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court's concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
114	**Silva vs. Premier Chevrolet of Buena Park, LLC** **2021-01218096**	**Motion for Approval of PAGA Settlement** The Court has reviewed the supplemental materials provided by Plaintiff's and Defendants' counsel and finds that with a few exceptions, they adequately address the previously identified issues. Accordingly, the joint Motion for Court Approval of the Parties' PAGA Settlement Approval filed by (1) Defendant Premier Automotive of Buena Park, LLC dba Premier Chevrolet of Buena Park (erroneously sued as Premier Chevrolet of Buena Park, L.L.C.); (2) Defendant Premier Automotive Management, LLC (erroneously sued as Premier Automotive Management, L.L.C. dba Premier Automotive) (collectively "Moving Defendants") and (3) Plaintiff Ronald Silva (collectively, "Moving Parties") is **CONDITIONALLY GRANTED**, pending the resolution of the issues identified below. This is a PAGA-only action. On 8/2/2021, Plaintiff Ronald Silva, on behalf of himself and all others similarly situated, filed a Complaint for PAGA civil penalties for violations of the Labor Code, including failure to pay minimum wages, failure to pay overtime wages, failure to pay wages earned during employment, failure to pay meal and rest period premiums, failure to maintain accurate employment records, and failure to pay wages due upon separation of employment. (ROA #2.) Named Defendants are Premier Chevrolet of Buena Park, LLC; Premier Automotive Management, LLC; Premier Nissan of San Jose, LLC; Premier Automotive of Carlsbad, LLC; Premier Automotive HCDJ of California, LLC; Premier Automotive Imports of CA, LLC; Premier Automotive K of Carlsbad, LLC; Premier Automotive CJDR of Buena Park, LLC; Premier Automotive of CA, LLC; Premier Automotive of Claremont, LLC; Premier Automotive of Newark, LLC; Premier Automotive of Oakland PAH, LLC; Premier Automotive of Placentia, LLC; Premier Automotive of Seaside, LLC; Premier Automotive of Stevens Creek, LLC; and Premier Automotive of West Covina, LLC.

		On 3/23/2022, Plaintiff filed a Motion for Court Approval of the PAGA Settlement. (ROA #40.) On 5/2/2022, Plaintiff-Intervenor Celia Arreola ("Intervenor") filed a Motion for Leave to Intervene. (ROA #54.) On 8/12/2022, the Court granted Intervenor's motion (ROA #71), and a complaint-in-intervention was filed on 8/18/2022 (ROA #83.) Ultimately, at the 4/21/2023 continued hearing on the settlement approval motion, the Court denied the motion with prejudice. (ROA #127.) However, the Court stated that to the extent the parties reached a new settlement that was materially different from the terms and conditions of the rejected settlement, they could re-file the motion. (*Id.*) On 12/20/2024, Moving Defendants filed a Motion for Reconsideration, or, in the Alternative, to Vacate Order Granting Plaintiff Arreola's Motion to Intervene. (ROA #146.) The motion was unopposed. (ROA #156.) On 3/7/2025, the Court denied the motion but, on its own motion, vacated the Court's 8/12/2022 order granting Arreola's motion to intervene in light of the California Supreme Court's ruling in *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664, which held that a PAGA plaintiff does not have a right to intervene challenge the settlement in a separate PAGA action brought by a different employee. (ROA #161.) Accordingly, the Court ordered that Arreola's complaint-in-intervention was stricken from the record. (*Id.*) On 1/16/2026, Moving Defendants and Plaintiff filed the instant Motion for Court Approval of the Parties' PAGA Settlement, and submitted for the Court's review the PAGA Settlement and Release of All Claims Agreement executed as of 11/14/2025 ("Settlement Agreement") and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The instant motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of $65,000. On 7/1/2026, the Court continued the first hearing on the Motion and asked counsel to address various issues. (ROA #214.) Counsel has submitted supplemental materials, including an revised version of the PAGA Settlement and Release of All Claims Agreement executed by the parties 8/4/2026 ("Revised Settlement Agreement") and an amended notice/cover letter to aggrieved employees that will accompany the payment to them. PAGA Members are defined as "any and all individuals who were employed by Defendants in California as non-exempt employees (including hourly paid and employees who earned commissions or other forms of incentive compensation." The PAGA Period is 2/24/2019 to the date of final judgment. As of 8/3/2026, the parties report there are 332 PAGA Members and 8,798 Pay Periods. In the Court's 7/11/2026 minute order, "[t]he Court note[d] that the operative complaint names numerous defendants, but the Settlement Agreement and the instant motion involves only two defendants. Moving Parties must explain the status of the remaining named defendants and why they are not included by name in the Settlement Agreement and/or are not jointly moving for settlement approval." (ROA #214.)

		In response, counsel for Defendants attested as follows: The operative Complaint names sixteen entities. This Settlement is between Plaintiff and two of them, Premier Automotive of Buena Park, LLC dba Premier Chevrolet of Buena Park and Premier Automotive Management, LLC, which are the entities that employed Plaintiff and the covered group. On June 26, 2025, the Court denied the petition to coordinate this action with the related *Arreola* and *Bridges* actions, with the result that this action proceeds as to the Buena Park dealership alone. Plaintiff has dismissed the remaining fourteen named defendants without prejudice. No claim against any non-settling defendant is released, compromised, or otherwise affected by this Settlement." (ROA #226, ¶ 15.) However, the Register of Actions contains no formal dismissal of the other 14 Defendants filed by Plaintiff. **Accordingly, Plaintiff must, within five (5) court days of this ruling, file and serve a formal request for dismissal of the 14 Defendants that are not part of this settlement.** Otherwise, based on a review of all submissions made in support of the Motion, the Court finds the settlement is fair, adequate, and reasonable. The Court concludes that an attorneys' fee award totaling $19,500 or 30% of the GSA, constituting a 0.35 multiplier against the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved. Upon resolution of the dismissal issue identified above, the Court will grant the instant motion and approve the following specific awards and disbursements from the GSA: • Attorneys' fees totaling $19,500.00 awarded to Plaintiff's counsel; and • Settlement administration costs of $4,450.00 awarded to ILYM Group, Inc. PAGA penalties in the amount of $41,050.00 shall be allocated as follows: seventy-five percent (75%), or $30,787.50, payable to the Labor and Workforce Development Agency (LWDA); and twenty-five percent (25%), or $10,262.50, payable to the Aggrieved Employees in accordance with the terms of the Revised Settlement Agreement. **Within five (5) court days**, counsel must submit a revised Proposed Order Approving PAGA Settlement and Judgment with the following revisions. The Court notes that nearly all of these revisions were ordered in the Court's 7/1/2026 minute order, but counsel has failed to make the edits. Any further failure to comply with the Court's order shall result in an OSC re Monetary Sanctions against all counsel in light of the joint motion. 4. The proposed order and judgment should identify the Settlement Agreement by its actual name.

		5. The proposed order and judgment states that it attaches the settlement agreement as Exhibit 1. Counsel separately submitted an Exhibit 1 to the Proposed Order at ROA #222. However, the version of the settlement agreement that appears in Exhibit 1 at ROA #222 is the original settlement agreement, not the revised version executed in August 2026, which is the operative settlement agreement. The operative settlement agreement should be attached to the proposed order and judgment. 6. The proposed order and judgment should include and specify the definitions of the Aggrieved Employees and the PAGA Period. 7. Moving parties should propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. Moving parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days (not 14 calendar days) before the Final Accounting hearing date, which should also be specified in the proposed order and judgment. 8. The proposed order and judgment should state that the Court's continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6. Final Accounting will be set in accordance with the Court's Order of Final Approval and Judgment after counsel proposes a realistic date. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Aggrieved Employees and all others in accordance with the Settlement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund/the cy pre recipient. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.